

Shyam Soni v. Managing Director, U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 April 2022 · WRIT - C No. 173 of 2022 · WRIT - C No. 173 of 2022 ·
Writ disposed of without opinion on merits; petitioner at liberty to file a Clause 4.4 indemnity bond so the licensee considers the commercial-connection application after hearing the owner.

HEADNOTE

A tenant seeking mandamus for a commercial connection withheld for want of the landlord's NOC was relegated to Clause 4.4 of the U.P. Electricity Supply Code, 2005. The High Court, without expressing any opinion on merits, disposed of the writ with liberty to furnish an indemnity bond and other legal requirements so that Dakshinanchal Vidyut Vitaran Nigam Limited considers the application after notice and hearing to both the occupier and the owner.

FACTUAL SUMMARY

Shyam Soni, tenant of a shop in Sushil Kumar's house at Chowk Bazar, Rajendra Market, Banda, sought a mandamus for a commercial electricity connection. Civil litigation was pending between tenant and landlord. Dakshinanchal Vidyut Vitaran Nigam Limited had withheld the connection for want of the landlord's no-objection certificate. After service, the discom's counsel stated that if the petitioner complied with Clause 4.4 of the U.P. Electricity Supply Code, 2005 and furnished an indemnity bond, the application would be considered in accordance with law. The petitioner agreed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

Where a tenant's commercial connection is withheld for want of the landlord's no-objection certificate, the writ may be disposed of without opinion on merits, with liberty to the occupier to file a Clause 4.4 indemnity bond and other legal requirements so that the licensee considers the application in accordance with law after notice and hearing to both the occupier and the owner. ¶ 4

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents Writ disposed of with liberty to file a Clause 4.4 indemnity bond so the licensee considers the tenant's commercial-connection application after hearing the owner. ¶ 4

clause-4.4-occupant-connection-on-indemnity-bond Licensee stated, and the Court accepted as the disposal path, that a tenant whose owner has not given NOC may have the connection application considered on furnishing a Clause 4.4 indemnity bond. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TENANT IS ENTITLED ON THE MERITS TO A COMMERCIAL CONNECTION, INCLUDING WHETHER OWNER NOC IS A BAR

Disposed of without expressing any opinion on merits. ¶ 4